

23STCV20269 23STCV20269

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-19

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Case Number: 23STCV20269 Hearing Date: August 19, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Igor Silinksii

;

Plaintiff,

vs.

BMW North America, LLC

;

Defendant.

Case No.:

23STCV20269

Hearing Date:

August 19, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion
to Disqualify Counsel

MOVING PARTY: Plaintiff Igor Silinksii

RESPONDING

PARTY: Defendant BMW North America, LLC

Motion to
Disqualify Counsel

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

DISCUSSION

Plaintiff Igor
Silinksii ("Plaintiff") moves the court
for an order disqualifying Clark Hill, LLP as counsel for defendant BMW North
America, LLC ("Defendant").

The
court denies the motion because Plaintiff has not presented any competent
evidence that Clark Hill's interactions with a former attorney at Plaintiff's
counsel's firm renders its continued participation inconsistent with the
integrity and fairness of this proceeding. (People ex rel. Dept. of
Corporations v. Speedee Oil Change Systems, Inc. (1999) 20 Cal.4th 1135,
1145.) Nor has Plaintiff presented any evidence indicating that Clark Hill may
have obtained confidential information from Plaintiff that could be used
adversely to him. (Costello v. Buckley (2016) 245 Cal.App.4th 748, 754.)
Friendly interactions with opposing counsel are not evidence of improper
conduct, even when placed against aggressively zealous correspondence. Moreover,

it is not merely permissible but required for an attorney to attempt to seek conflict waivers from a current or former client if a potential conflict of interest exists. (Cal. Rules of Prof. Conduct., Rule 1.7.) Further, Plaintiff has not shown that Defendant or Clark Hill suborned perjury by knowingly preparing false declarations regarding the issuance of subpoenas. (Pen. Code, § 118.) The mere fact that the declarations were not true does not establish a knowing or intentional falsehood.

ORDER

The court denies
plaintiff Igor Silinksii's motion to disqualify counsel.

The court orders defendant
BMW North America, LLC to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 19, 2026

Robert B. Broadbelt III

Judge of the Superior Court